

HEADNOTE

“1. Although the panel should decide as soon as possible after the conclusion of the written proceedings by an order on the procedure according to Art. 33(3) UPCA in accordance with R. 37.1 RoP, it may make an earlier decision in accordance with R. 37.2 RoP if it takes into account the submissions of the parties and grants them a hearing.

2. The joint hearing of infringement and invalidity counterclaim can be expedient for efficiency reasons alone. It is also substantively advantageous because it allows a decision on both the validity of the patent and the question of infringement to be made on the basis of a uniform interpretation by the same panel in the same composition. This applies even more if the complexity of the disputed technology appears to be rather moderate within the known spectrum of patent disputes and the number of validity attacks is also manageable.”

COURT
Local Division in Düsseldorf

PROCEEDINGS
Infringement action

PATENT
EP 2 546 134 B1

Combination structure of bicycle frame
and motor hub

KEYWORDS

Application of Article 33(3) EPGÜ

Discretion

Proceed with infringement proceedings

Assignment of technically qualified judge

Article 33 Competence of the divisions of the Court of First Instance

SUMMARY

The Local Division in Düsseldorf ruled on an infringement action. The patent at issue relates to a combination structure of bicycle frame and motor hub. According to the headnotes of the decision, while panels should ordinarily decide after written proceedings conclude, they may issue an earlier decision if they consider all party submissions and provide an opportunity for a hearing. Hearing infringement and invalidity claims together can serve efficiency and substantive goals, particularly because the same panel can then interpret the patent consistently when deciding both validity and infringement, which proves especially valuable when the technology complexity and number of validity challenges are moderate.